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April 21, 2025

AS AMENDED

ENGROSSED HOUSE

BILL NO. 2115

By: Osburn of the House

and

Thompson of the Senate

[state government - Energy Conservation Assistance Fund - Energy Conservation Assistance Loan Fund - Weatherization Revolving Fund - references to the Oklahoma Department of Commerce - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 2902, is amended to read as follows:

Section 2902. A. The ~~Oklahoma~~ Department of Commerce Human Services shall be responsible for the disbursement and implementation of the Energy Conservation Assistance Fund.

B. The Department shall involve senior citizen groups, social service agencies and other civic groups in publicizing such program.

C. ~~The Department of Human Services, in cooperation with the Oklahoma Department of Commerce,~~ shall determine eligibility requirements necessary to qualify a homeowner to obtain such grants. Upon meeting any such eligibility standards, the Department of Human Services shall certify ~~to the Oklahoma Department of Commerce~~ that

1 such homeowner is qualified to receive such grant upon notification
2 of such certification. The ~~Oklahoma~~ Department of ~~Commerce~~ Human
3 Services shall distribute the grant funds. Priorities shall be
4 established for applications according to those indicating the
5 greatest need. Low-income elderly and handicapped applicants shall
6 be given first priority.

7 D. In order to qualify for grant assistance, the property shall
8 meet all of the following requirements:

- 9 1. The property shall be the homestead of the applicant; and
- 10 2. The property for which the grant is issued shall not be
11 income-producing or used in any method other than as the principal
12 residence of the applicant.

13 E. Grants may be issued to finance the following types of
14 weatherization:

- 15 1. Structural repairs necessary to improve efficient heating
16 and cooling of the residence;
- 17 2. Insulation for attics, walls and water heaters;
- 18 3. Replacement of broken glass, inefficient doors and door
19 thresholds;
- 20 4. Storm windows;
- 21 5. Caulking and weather stripping; and
- 22 6. Other appropriate energy conservation measures as determined
23 by the ~~Oklahoma~~ Department of ~~Commerce~~ Human Services.

1 No grants shall be made through this program unless an energy
2 audit has been performed on the applicant's principal residence.

3 No grant shall exceed Three Thousand Dollars (\$3,000.00). No
4 grant shall be awarded to any applicant with an annual income in
5 excess of the amount specified in this subsection.

6 Income eligibility shall be determined based on one hundred
7 twenty-five percent (125%) of the poverty guidelines issued by the
8 United States Office of Management and Budget.

9 F. The application for the grant shall be in such form as
10 determined by the ~~Oklahoma~~ Department of ~~Commerce~~ Human Services.
11 No grant shall be issued to any person until such person has been
12 certified as eligible by the Department of Human Services. The
13 applicant shall be provided with copies of all documents related to
14 the issuance of the grant. The applicant shall provide documents,
15 as required, concerning the status of property and household income.

16 G. 1. The ~~Oklahoma~~ Department of ~~Commerce~~ Human Services
17 contractors shall be nonprofit community action agencies or other
18 nonprofit entities experienced with weatherization programs. The
19 ~~Oklahoma~~ Department of ~~Commerce~~ Human Services shall monitor
20 contractors for compliance with all Department policies, guidelines
21 and regulations.

22 2. Contractors shall be responsible for completion and
23 inspection of all work undertaken. No payment shall be made to any
24 contractor until after the required documentation is submitted and

1 approved by the ~~Oklahoma~~ Department of ~~Commerce~~ Human Services.

2 Payments to contractors shall be made for services rendered and
3 shall be based on the costs previously agreed to in writing.

4 H. The ~~Oklahoma~~ Department of ~~Commerce~~ Human Services shall
5 actively monitor and audit the financial and operating records of
6 the contractors involved with the Energy Conservation Assistance
7 Fund to assure appropriate compliance with established regulations,
8 guidelines and standards. The ~~Oklahoma~~ Department of ~~Commerce~~ Human
9 Services shall also monitor contractors to ensure use of proper
10 materials and workmanship.

11 SECTION 2. AMENDATORY 63 O.S. 2021, Section 2903, is
12 amended to read as follows:

13 Section 2903. A. The State of Oklahoma through the Department
14 shall have a lien against the property on which the work is being
15 performed for the amount of the loan plus interest thereon. The
16 Department shall record a notice of lien with the county clerk where
17 the property is located. A delinquent installment of the loan may
18 be foreclosed by the Department and the property concerned shall be
19 sold in the manner provided for foreclosures of mortgages on land.
20 Any real estate sold under any order, judgment or decree of court to
21 satisfy the lien may be redeemed by the owner or his assignee at any
22 time within one (1) year of the date of the sale by paying to the
23 purchaser thereof or his assignee the amount paid with interest from
24 the date of purchase at the rate of twelve percent (12%) per year.

1 B. Repayment of each loan shall be determined according to a
2 repayment schedule determined by the Department.

3 C. Repayment of the loan may be deferred until that time when
4 the loan recipient sells the property or ownership is transferred.
5 In such cases where a loan has not been repaid after ten (10) years,
6 another ten-year extension shall be granted if the loan recipient or
7 the surviving spouse is still the owner-occupier of the residence.
8 Such extensions shall be granted until such time when the property
9 is transferred from the loan recipient or the surviving spouse to
10 another party.

11 D. Loan repayments shall be made to the ~~Oklahoma~~ Department of
12 ~~Commerce~~ Human Services and shall be deposited in the Energy
13 Conservation Loan Fund.

14 SECTION 3. AMENDATORY 74 O.S. 2021, Section 5030, is
15 amended to read as follows:

16 Section 5030. ~~A.~~ There is hereby created in the State Treasury
17 a revolving fund to be designated as the "Weatherization Revolving
18 Fund", which shall consist of all monies appropriated or transferred
19 to the fund. Said revolving fund shall be a continuing fund not
20 subject to fiscal year limitations and shall be under the
21 administration of the ~~Oklahoma~~ Department of ~~Commerce~~ Human Services
22 and may be disbursed without legislative appropriation. Warrants
23 for expenditures from said revolving fund shall be drawn by the
24 State Treasurer, based on claims signed by an authorized employee or

1 employees of the ~~Oklahoma~~ Department of ~~Commerce~~ Human Services and
2 approved for payment by the Director of the Office of Management and
3 Enterprise Services. It is hereby declared that energy conservation
4 is in the interest of the State of Oklahoma. The purpose of this
5 fund is to provide monies to be used for the purpose of weatherizing
6 households in Oklahoma thereby conserving the oil and natural gas
7 resources of the state.

8 ~~B. On July 1, 1986, any unallotted cash balance in the~~
9 ~~Weatherization Revolving Fund created in Section 1537.1 of this~~
10 ~~title shall be transferred to the Weatherization Revolving Fund~~
11 ~~created in this section. All outstanding financial obligations and~~
12 ~~encumbrances of the Weatherization Revolving Fund created in Section~~
13 ~~1537.1 of this title are hereby transferred to the Oklahoma~~
14 ~~Department of Commerce. After November 15, 1986, any unexpended~~
15 ~~balance in the Weatherization Revolving Fund created in Section~~
16 ~~1537.1 of this title shall be transferred to the Weatherization~~
17 ~~Revolving Fund created in this section.~~

18 SECTION 4. This act shall become effective July 1, 2026.

19 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
20 April 21, 2025 - DO PASS AS AMENDED
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